

FEDERAL MARITIME COMMISSION

NETCYCLE TRADING CORP., *REVOCATION OF OCEAN
TRANSPORTATION INTERMEDIARY LICENSE NO. 021597NF*

DOCKET NO. 24-15

Served: March 21, 2024

NOTICE OF HEARING REQUEST AND ASSIGNMENT

On March 8, 2024, the Bureau of Certification and Licensing issued a letter providing Netcycle Trading Corp. notice of the Federal Maritime Commission's intent to revoke its ocean transportation intermediary (OTI) license. On March 19, 2024, Netcycle Trading Corp. submitted a request for hearing on the Commission's intent to revoke its OTI license pursuant to 46 C.F.R. § 515.17 and 46 C.F.R. part 502, subpart X. This request is transmitted and assigned to the Office of Administrative Law Judges in accordance with 46 C.F.R. § 502.702(a).

All filings in this proceeding can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/24-15/>.

David Eng
Secretary



IMPORT * EXPORT

Pg 1 of 2

Miami, March 19th / 2024

Federal Maritime Commission

Attn: Secretary David Eng

Ref: Notice of Intent to Revoke – Org. #021597 Lic # 021597NF

By this statement Netcycle Trading is respectfully requesting to Commission's Secretary, as per the Federal Maritime Commission's procedures at 46 C.F.R. §§ 502, subpart X, § 502.703 Applicant or licensee response of the right to respond in support of an OTI application or continuation of a current OTI license, a hearing for mitigation and reconsideration about Notice Intent of Revoke Lic # 021597NF, under of extenuate circumstances, detailing the following reasons:

- Netcycle Trading is a corporation, established since January 2006 in same location, being in transportation and logistics industry by 18 years, maintaining high standards and guidelines from State and Federal control agencies, that they have allowed earn several accreditations to offer services as duly license cargo agents. Our FMC license as OTI was obtained since 2008 and during 16 years we have had a well maintaining reputation and totally clear record without any claim from any one of maritime and cargo industry.
- Netcycle Trading is a small family business, which almost during 2 decades has meant the source of support for many families, currently with employees and associates, which depend of income that we can got via ocean freight services and linked logistics services, allowed to be offered as duly licensed for this, surviving only on the services it performs. Having no properly license will result in loss of contracts with carriers and off course, detrimental effect in all operations.
- I, Nadia Ledesma as former president of Netcycle Trading, had a lack incident in handling of control and security over business confidential information, allowing to an ex-employee who worked in this company during 12 years and for the trust that was created by long time, had access to logins and passwords, emails, company paperwork with our name and logo as invoices, certifications, transport documents, resulting in her fired. Was found by our attorneys and law enforcement agencies during investigation, that she used our business confidential information and company records for unlaw purposes. At date still her own legal case remains open, restricting any additional information or details, limited to inform that after she was fired from Netcycle, was hired by another cargo company, but it resulted for that business with a same legal issue as we got. Unfortunately for us, the damage was already done and as principal officer of corporation I assumed the responsibility in my fault, although this meant in personal legal consequences and loss my position as president of the company that I founded and which during many years I've worked hard to keep it running. Considering the compromises with our employees, customers and partners, I handed over the position of president to my stepson Carlos Ledesma Jr., despite the magnitude of the circumstances but revising at detail my personal and business records, I was allowed to remain in this company with a position of support and guide in the transition of administration.

8020 N.W. 67th Street - Miami, FL. 33166

Phone: (305) 470-8200

Web site: www.netcyclecorp.com - E-mail: info@netcyclecorp.com



IMPORT * EXPORT

Pg 2 of 2

I never did, nor was it my intention or purpose to participate in any illegal activity, much less to involve in any problem the company in which members of my family also work and which means our total livelihood, to keep Netcycle afloat for almost 20 years has been the result of countless sacrifices and overcoming many adversities. Quite the contrary, continuing to operate and moving in advance this company under the proper regulations, licenses and accreditations has been the mandate. Our acquaintances, both professionally and personally, as well various entities to whom we have had to explain our situation, have fully understood the difficulty we face and have supported us to move forward, valuing more the fact of knowing each other and that a fortuitous circumstance that involved us does not outweigh the many years of hard and honest work and effort.

I will comply with the legal mandate outcome from this adverse situation, but I and the people who depend on our business, will deeply appreciate the opportunity for my stepson to continue working with this company operating as a duly licensed OTI, under the conditions that Federal Maritime Commission considers appropriate, as well maintaining the over controls that it could results. Also, we would appreciate the consideration that currently we have shipments on transit and license revoke will result in total affectation to our customers and legal contracts with carriers

We thank the opportunity to explain the facts and the kind consideration on case, we will not limit necessary measures to never again be at risk of issue like this

If any additional information does is required, please don't hesitate to contact us,

Appreciating the kindly attention to request

Sincerely

A handwritten signature in dark ink, appearing to read "Nadia Ledesma", with a horizontal line extending to the right.

Nadia Ledesma
nadia@netcyclecorp.com

cc: Carlos Ledesma Jr – President